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SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES
LIMITED CIVIL JURISDICTION

Cavalry SPV I, LLC,
Plaintiff,
vs.
ELIZABETH LOCKHART, an individual, et
al.,
Defendant.

Case No. 24CHLC00637

**DECLARATION IN SUPPORT OF
APPLICATION FOR ENTRY OF
DEFAULT JUDGMENT PURSUANT TO
CIVIL CODE § 1788.60(a)**

I, the undersigned, hereby declare as follows:

1. I am an employee of Cavalry Portfolio Services, LLC (hereinafter, "CPS"), which performs collection services for Cavalry SPV I, LLC (Hereinafter "Plaintiff"), and am a qualified witness. I am a competent person over eighteen years of age. Based on my review of the account records maintained on Plaintiff's behalf, I have personal knowledge and make the statements herein. Plaintiff is the current owner of, and/or successor to, the obligation sued upon, and was assigned all the rights, title and interest to Defendant's SYNCHRONY BANK account, ending in XXXXXXXXXXXXX0517 (hereinafter, the "Account"). I have access to and have reviewed the records pertaining to the Account and am authorized to make this declaration on Plaintiff's behalf.

2. Plaintiff purchases portfolios of delinquent accounts from either the original creditor or a subsequent purchaser of the account. As part of its operations, CPS, on behalf of Plaintiff, operates and maintains computer systems, into which CPS, on behalf of Plaintiff, integrates electronic records and information received from the seller.

1 3. I am familiar with the manner and method by which CPS, on behalf of Plaintiff,
2 creates and maintains its normal documents and records. The records are kept in the normal
3 course of business. CPS, on behalf of Plaintiff, maintains computerized account records,
4 including the account information that was provided to Plaintiff by SYNCHRONY BANK. The
5 computerized account records include the balance at the time of sale and the date of sale of the
6 subject account. The records are kept in the ordinary course of business by representatives of

CPS, on behalf of Plaintiff, who are charged with the duty to accurately record any business act,
condition or event on the computer with entries made at or near the time of any such occurrence

8 4. On or about May 13, 2023, Plaintiff became the successor in interest to this
9 Account. CPS on behalf of Plaintiff acquired and incorporated the attached account records into
10 its business records, which are not modified or altered, as a result of Plaintiff's purchase of the
11 Account. These records are kept in the regular course of business on behalf of Plaintiff, and
12 along with the electronic records provided at purchase, are business records maintained by CPS
13 on behalf of Plaintiff for this Account.

14 5. Federal law required the original creditor to furnish Defendant with periodic
15 statements.

16 6. The accuracy of such records is relied upon by Plaintiff in purchasing and by CPS
17 on behalf of Plaintiff in collecting this Account. These records are relied upon in Plaintiff's and
CPS's regular course of business.

18 7. This Account was purchased on or after January 1, 2014

19 8. In accordance with California Civil Code section 1788.58(a)(3-8), CPS records
20 maintained on behalf of Plaintiff show the following relevant information concerning the
21 Account.

22 a. Plaintiff is the sole owner of the Account.

23 b. The Account was opened on April 22, 2018 and charged off on May 08, 2022
24 with a balance of \$2,179.04

25 c. CPS records maintained on behalf of Plaintiff show that the balance of \$2,139.04
26 remains due and owing as of April 2, 2024. Plaintiff is not seeking to recover any
27 post-charge off interest and/or fees that may have been imposed by the charge off
28 creditor or subsequent purchasers of the debt and is seeking to recover only that
portion of the charge off balance that remains due and owing as of April 2, 2024.

- 1 d. The last payment posted to the Account on November 9, 2021.
- 2 e. The charge-off creditor name and address at the time of charge off:
- 3 SYNCHRONY BANK PO BOX 960061 ORLANDO FL 32896-0061.
- 4 f. The charge-off Account number associated with the debt at time of charge off was
- 5 Account No. ending in XXXXXXXXXXXXX0517.
- 6 g. Defendant's name and last known address as it appeared in the charge off
- 7 creditor's records: ELIZABETH LOCKHART 6940 FULTON AVE APT 203 ,
- 8 NORTH HOLLYWOOD, CA 91605-6611.
- 9 h. The names and addresses of all persons or entities that purchased the debt after
- 10 charge off, including the plaintiff debt buyer, are as follows:
- 11 i. CAVALRY SPV I, LLC, 1 American Lane Suite 220, Greenwich, CT 06831.
- 12 Prior to January 1, 2022, the address for CAVALRY SPV I, LLC was: 500
- 13 Summit Lake Drive, Suite 400, Valhalla, NY 10595.

14 9. CPS records maintained on behalf of Plaintiff state that Plaintiff, CPS or its

15 agents made demand for payment of the balance herein prior to making this declaration and

16 Defendant(s) failed to make full payment of the amount owed on the Account.

17 10. Attached hereto as Exhibits A, B, and C are the account records I have reviewed

18 in executing the declaration that relate to the Account and/or payment(s) received.

19 Exhibit A. Seller Data document and Chain of Title - establishing the facts

20 required under Civil Code sections 1788.58(a)(3), (a)(7), and (a)(8).

21 Exhibit B. Account Statements and/or Account records including, but not limited

22 to, the most recent monthly statement recording a purchase transaction, last payment, or

23 balance transfer - establishing the fact required under Civil Code section 1788.52(b) and

24 1788.58(a)(5).

25 Exhibit C. Account Statement - establishing the facts required under Civil Code

26 sections 1788.58(a)(4), and (a)(6).

27 11. The documents attached hereto are true and correct copies of documents provided

28 to CPS on behalf of Plaintiff, by the original creditor, being a reproduction of the records on file

on behalf of Plaintiff based upon my review, except to the extent that confidential and privileged

information and/or personal identifying information is omitted or redacted as required by local

rules, and applicable state and federal laws.

12. If called upon to testify as a witness thereon, I could and would competently testify as to all the facts stated herein.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed this 11 day of APRIL 2024, at FORT LAUDERDALE, FLORIDA.

Signature:

12

By:

DEBRA BOVASO

Title:

LEGAL ADMINISTRATOR

EXHIBIT A

synchrony

4500 Munson St NW
Canton OH 44718, U.S.

BILL of SALE

Cavalry (S2FSCMPS) – PSCC 180 MP– May 2023

Transfer Date: 05/13/2023

For value received and in further consideration of the mutual covenants and conditions set forth in the Master Account Sale Agreement (the "Agreement"), dated as of this 13th day of February, 2023 by and between Synchrony Bank formerly known as GE Capital Retail Bank; RFS Holding, LLC, Synchrony Card Funding, LLC and Retail Finance Credit Services, LLC., ("Seller") and Cavalry SPV I, LLC ("Buyer"), Seller hereby assigns transfers, sells, conveys, grants, and delivers to Buyer, its successors and assigns, without recourse except as set forth in the Agreement, to the extent of its ownership and right to sell, the Accounts as set forth in the Notification Files (as defined in the Agreement and Account Sale Addendum dated 02/13/2023, delivered by Seller to Buyer on or about 13th day of May 2023, and as further described in the Agreement.

The aggregate Sale Balance of the accounts as of the Transfer Date was [REDACTED]

Synchrony Bank

DocuSigned by:

By: Lynne Fisher 5/31/2023

17C18DB6C75C743B

Lynne Fisher

Title: SVP Recovery Operations

RFS Holding LLC

DocuSigned by:

By: Lynne Fisher 5/31/2023

17C18DB6C75C743B

Lynne Fisher

Title: Duly Authorized Signatory

Synchrony Card Funding, LLC

DocuSigned by:

By: Lynne Fisher 5/31/2023

17C18DB6C75C743B

Lynne Fisher

Title: Duly Authorized Signatory

Retail Finance Credit Services, LLC

DocuSigned by:

By: Lynne Fisher 5/31/2023

17C18DB6C75C743B

Lynne Fisher

Title: Vice President

Purchase Date:5/13/2023

1257

Data Excerpt from Notification Files**

Field Name	Data Provided
CNSMR_ACCNT_CRDTR_RFRNC_ID_TXT	0517
consumer-legacy-identifier	0517P
CNSMR_ADDRSS_LN_1_TXT	6940 FULTON AVE APT 203
cnsmr_idntfr_ssn_txt*	XXXXXX4310
CNSMR_ADDRSS_LN_2_TXT	
CNSMR_ADDRSS_CITY_TXT	NORTH HOLLYWOOD
CNSMR_ADDRSS_ST_TXT	CA
first-name	ELIZABETH
last-name	LOCKHART
CNSMR_ADDRSS_PSTL_CD_TXT	916056611
middle-name	
UDEFOPENDATE	4/22/2018
CNSMR_ACCNT_CHRG_OFF_DT	5/8/2022
CNSMR_ACCNT_LST_PYMNT_DTTM	11/9/2021
CURBAL	\$2,179.04
CNSMR_ACCNT_ID	
CNSMR_ID	

*Data displayed has been redacted for consumer privacy

**The data contained in this document was extracted from the electronic records transmitted by the seller concerning the referenced account

Synchrony Bank
P.O. Box 71782
Philadelphia, PA 19176-1782

ELIZABETH LOCKHART
6940 FULTON AVE APT 203
NORTH HOLLYWOOD, CA 91605-6611

05/30/2023

RE: Ashley Furniture
Account Number: 60191xxxxxx0517
Account Balance at Time of Sale: 2,179.04

Dear ELIZABETH LOCKHART,

This letter is to inform you that the above-referenced account was sold to Cavalry SPV I, LLC on 05/13/2023. If you have any questions about this account, please contact:

Cavalry SPV I, LLC
1 American Lane, Suite 220
Greenwich, CT 06831
800-724-1757
www.cavps.com

Sincerely,

Synchrony Bank

SOLDLTR2

EXHIBIT B

Summary of Account Activity		Payment Information	
Previous Balance	\$1,802.57	New Balance	\$1,786.77
+ New Purchases	\$0.00	Minimum Payment This Period	\$103.00
- Payments	\$100.00	Amount Past Due	\$156.00
+/- Credits, Fees & Adjustments (net)	\$40.00	Total Minimum Payment Due	\$259.00
+/- Interest Charge (net)	\$44.20	Payment Due Date	01/01/2022
New Balance	\$1,786.77	PAYMENT DUE BY 5 P.M. EASTERN ON THE DUE DATE. We may convert your payment into an electronic debit. See reverse side.	
Credit Limit	\$1,860.00	Late Payment Warning: If we do not receive your Total Minimum Payment Due by the Payment Due Date listed above, you may have to pay a late fee up to \$40.00.	
Available Credit	\$0.00	Minimum Payment Warning: Making only the Total Minimum Payment Due will increase the amount of interest you pay and the time it takes to repay your balance. For example:	
Days in Billing Period	31		
Pay online for free at: mysynchrony.com For Synchrony Bank customer service or to report your card lost or stolen, call 1-877-889-0721.			
Best times to call are Wednesday - Friday.			

Transaction Summary												
Tran Date	Post Date	Reference Number	Description	Amount								
11/09/2021	11/09/2021	85348129T01DW971Z	PAYMENT - THANK YOU	(\$100.00)								
			FEES									
12/01/2021	12/01/2021		LATE FEE	\$40.00								
			TOTAL FEES FOR THIS PERIOD	\$40.00								
			INTEREST CHARGED									
12/09/2021	12/09/2021		INTEREST CHARGE ON PURCHASES	\$44.20								
			TOTAL INTEREST FOR THIS PERIOD	\$44.20								
<table><tr><th colspan="2">2021 Totals Year-to-Date</th></tr><tr><td>Total Fees Charged in 2021</td><td>\$480.00</td></tr><tr><td>Total Interest Charged in 2021</td><td>\$531.99</td></tr><tr><td>Total Interest Paid in 2021</td><td>\$580.00</td></tr></table>					2021 Totals Year-to-Date		Total Fees Charged in 2021	\$480.00	Total Interest Charged in 2021	\$531.99	Total Interest Paid in 2021	\$580.00
2021 Totals Year-to-Date												
Total Fees Charged in 2021	\$480.00											
Total Interest Charged in 2021	\$531.99											
Total Interest Paid in 2021	\$580.00											

Interest Charge Calculation				
Type of Balance	Expiration Date	Annual Percentage Rate (APR)	Balance Subject to Interest Rate	Interest Charge
Purchases	NA	29.99%	\$1,735.36	\$44.20

* NOTICE: See reverse side and additional pages (if any) for important information concerning your account.

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Pay online at mysynchrony.com or enclose this coupon with your check. Please use blue or black ink.

Total Minimum Payment Due	Past Due Amount	Payment Due Date	New Balance	Account Number
\$259.00	\$156.00	01/01/2022	\$1,786.77	0517

Payment Enclosed : \$
☐ New address or e-mail?
 Check the box at left and print changes on back

Payment due includes \$ 156.00 past due. Please pay the past due amount PROMPTLY.

 ELIZABETH LOCKHART
 6940 FULTON AVE APT 203
 NORTH HOLLYWOOD CA 91605-6611

 Make Payment to: SYNCHRONY BANK
 PO BOX 96061
 ORLANDO, FL 32896-0061

EXHIBIT C

Summary of Account Activity		Payment Information	
Previous Balance	\$2,047.69	New Balance	\$2,139.04
+ New Purchases	\$0.00	Minimum Payment This Period	\$113.00
- Payments	\$0.00	Amount Past Due	\$581.00
+/- Credits, Fees & Adjustments (net)	\$40.00	Total Minimum Payment Due	\$694.00
+/- Interest Charge (net)	\$51.35	Payment Due Date	05/01/2022
New Balance	\$2,139.04	PAYMENT DUE BY 5 P.M. EASTERN ON THE DUE DATE. We may convert your payment into an electronic debit. See reverse side.	
Credit Limit	\$1,860.00	Late Payment Warning: If we do not receive your Total Minimum Payment Due by the Payment Due Date listed above, you may have to pay a late fee up to \$40.00.	
Available Credit	\$0.00	Minimum Payment Warning: Making only the Total Minimum Payment Due will increase the amount of interest you pay and the time it takes to repay your balance. For example:	
Overlimit Amount	\$279.04	If you make no additional charges using this card and each month you pay ...	
Days in Billing Period	30	You will pay off the balance shown on this statement in about ...	
Pay online for free at: mysynchrony.com For Synchrony Bank customer service or to report your card lost or stolen, call 1-877-889-0721. Best times to call are Wednesday - Friday.		And you will end up paying an estimated total of ...	
		Only the minimum payment 9 years \$4,360.00	
		If you would like information about credit counseling services, call 1-877-302-8797.	

Transaction Summary				
Tran Date	Post Date	Reference Number	Description	Amount
FEES				
04/01/2022	04/01/2022		LATE FEE	\$40.00
TOTAL FEES FOR THIS PERIOD				\$40.00
INTEREST CHARGED				
04/08/2022	04/08/2022		INTEREST CHARGE ON PURCHASES	\$51.35
TOTAL INTEREST FOR THIS PERIOD				\$51.35
2022 Totals Year-to-Date				
Total Fees Charged in 2022				\$160.00
Total Interest Charged in 2022				\$192.27
Total Interest Paid in 2022				\$0.00

Interest Charge Calculation				
Type of Balance	Expiration Date	Annual Percentage Rate (APR)	Balance Subject to Interest Rate	Interest Charge
Purchases	NA	29.99%	\$2,082.95	\$51.35

Cardholder News & Information	
If you need to contact Synchrony about the loss of a Synchrony cardholder, you can submit a deceased notification form located at www.syf.com under the 'Contact Us' page.	
PLEASE READ THE IMPORTANT CHANGE-IN-TERMS NOTICE INCLUDED ON THIS BILLING STATEMENT. THIS NOTICE MAKES CHANGES TO THE CARDHOLDER AGREEMENT GOVERNING YOUR ACCOUNT.	

* NOTICE: See reverse side and additional pages (if any) for important information concerning your account.

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Pay online at mysynchrony.com or enclose this coupon with your check. Please use blue or black ink.

Total Minimum Payment Due	Past Due Amount	Payment Due Date	New Balance	Account Number
\$694.00	\$581.00	05/01/2022	\$2,139.04	0517

Payment Enclosed: \$
☐ New address or e-mail?
 Check the box at left and
 print changes on back

Payment due includes \$ 581.00 past due. Please pay the past due amount PROMPTLY.

 ELIZABETH LOCKHART
 6940 FULTON AVE APT 203
 NORTH HOLLYWOOD CA 91605-6611

 Make Payment to: SYNCHRONY BANK
 PO BOX 960061
 ORLANDO, FL 32896-0061

Important Changes to Your Account Terms

The following is a summary of changes that are being made to your account terms. Unless otherwise noted, these changes will take effect on 06/08/22.

Revised Terms	
Late Payment Fee	Up to \$41.
Returned Payment Fee	\$30

Additional Information about the Late Payment Fee change

We are increasing the Late Payment Fee applicable to your account. The Late Payment Fee terms in your credit card agreement will be replaced with the Late Payment Fee terms shown below. Please keep this important document for your records.

"Late Payment Fee

We will charge this fee if we do not receive the total minimum payment due on your account by 5 p.m. (ET) on the due date. This fee is equal to:

1. \$30, if you have paid your total minimum payment due by the due date in each of the prior six billing cycles;

OR

2. \$41, if you have failed to pay your total minimum payment due by the due date in any one or more of the prior six billing cycles.

The late payment fee will never be more than the total minimum payment that was due."

Additional Information about the Returned Payment Fee change

We are adding a Returned Payment Fee, or increasing the existing Returned Payment Fee, as applicable, that is associated with your account. We will charge this fee if any check, other instrument, or electronic payment authorization you provide us in payment on your account, is not honored, returned unpaid or cannot be processed for any reason. The following terms will update your existing agreement. Please keep this important document for your records.

"We will charge this fee if any check, other instrument, or electronic payment authorization you provide us in payment on your account, is not honored, returned unpaid or cannot be processed for any reason. This fee is equal to \$30. The returned payment fee will not be more than the amount permitted by applicable law."

Minimum Payment: We are changing the total minimum payment calculation on your account. The Minimum Payment Calculation terms in your credit card agreement will be replaced with the Minimum Payment Calculation terms shown below. Please keep this important document for your records.

"Minimum Payment Calculation

Your total minimum payment is calculated as follows.

The sum of:

a. For the new balance shown on your billing statement (excluding any balance attributable to a special promotional purchase with a unique payment calculation), the greater of:

(i) \$30; or

(ii) 3.5% of the new balance shown on your billing statement; or

(iii) The sum of 1% of your new balance shown on your billing statement plus interest and late payment fees charged in the current billing cycle; PLUS

b. Any past due amounts; PLUS

c. Any payment due in connection with a special promotional purchase with a unique payment calculation.

We round up to the next highest whole dollar in figuring your total minimum payment. Your total minimum payment will never be more than your new balance."

Summary of Account Activity		Payment Information	
Previous Balance	\$2,139.04	New Balance	\$0.00
+ New Purchases	\$0.00	Total Minimum Payment Due	\$771.00
- Payments	\$0.00	Payment Due Date	05/09/2022
+/- Credits, Fees & Adjustments (net)	(\$2,139.04)	PAYMENT DUE BY 5 P.M. EASTERN ON THE DUE DATE.	
+/- Interest Charge (net)	\$0.00	We may convert your payment into an electronic debit. See reverse side.	
New Balance	\$0.00	Late Payment Warning: If we do not receive your Total Minimum Payment Due by the Payment Due Date listed above, you may have to pay a late fee up to \$40.00.	
Credit Limit	\$1,860.00		
Available Credit	\$0.00		
Days in Billing Period	30		
Pay online for free at: mysynchrony.com			
For Synchrony Bank customer service or to report your card lost or stolen, call 1-877-889-0721.			
Best times to call are Wednesday - Friday.			

Transaction Summary				
Tran Date	Post Date	Reference Number	Description	Amount
05/08/2022	05/08/2022	F907300GG00999990	CHARGE OFF ACCOUNT-PRINCIPALS	(\$677.40)
05/08/2022	05/08/2022	F907300GG00999990	CHARGE OFF ACCOUNT-INTEREST	(\$1,501.64)
			CHARGE	
			FEES	
05/01/2022	05/01/2022		LATE FEE	\$40.00
			TOTAL FEES FOR THIS PERIOD	\$40.00
			INTEREST CHARGED	
05/08/2022	05/08/2022		INTEREST CHARGE ON PURCHASES	\$0.00
			TOTAL INTEREST FOR THIS PERIOD	\$0.00
2022 Totals Year-to-Date				
Total Fees Charged in 2022				\$200.00
Total Interest Charged in 2022				\$192.27
Total Interest Paid in 2022				\$0.00

Interest Charge Calculation				
Type of Balance	Expiration Date	Annual Percentage Rate (APR)	Balance Subject to Interest Rate	Interest Charge
Purchases	NA	29.99%	\$0.00	\$0.00

Cardholder News & Information	
If you need to contact Synchrony about the loss of a Synchrony cardholder, you can submit a deceased notification form located at www.syf.com under the 'Contact Us' page.	
Statement not provided to customer.	

* NOTICE: See reverse side and additional pages (if any) for important information concerning your account.

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Pay online at mysynchrony.com or enclose this coupon with your check. Please use blue or black ink.

Total Minimum Payment Due	Past Due Amount	Payment Due Date	New Balance	Account Number
\$771.00	\$0.00	05/09/2022	\$0.00	0517

Payment Enclosed : \$

☐ New address or e-mail? Payment due includes \$ 0.00 past due. Please pay the past due amount PROMPTLY.
Check the box at left and print changes on back

ELIZABETH LOCKHART
6940 FULTON AVE APT 203
NORTH HOLLYWOOD CA 91605-6611

Make Payment to: SYNCHRONY BANK
PO BOX 960061
ORLANDO, FL 32896-0061